

Default was entered 4/20/26.

Analysis

Section 473.5 of the Code of Civil Procedure allows the court to set aside a default judgment when the defendant does not receive actual notice of the process. Section 473(b) of the CCP which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

Though Defendant did not explicitly invoke Section 473.5 of the CCP, this court will analyze his Motion under this authority as well, since Defendant claimed he was not personally served.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

Moreover, courts have found that provisions governing notice of service of process are to be liberally construed if actual notice has been received by the defendant. (See *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App. 4th 1387, 1392 (substitute service found where gate guard to a home was given authority to control access to appellants' home; the gate guard's relationship with appellants made it more likely than not that he would deliver process to appellants)).

In the instant matter, the court does not find that Defendant has overcome the presumption that he was actually served. What's more, even assuming the truth of Defendant's assertion, for the sake of argument, Defendant concedes that he did receive the process documents and did have actual notice of the case.

Moreover, this court does not find a sufficient basis to set aside the entry of default for defendant's mistake or inadvertence. The court is sympathetic to the difficulties that Defendant claims he is enduring, but these difficulties appear to be quite general, offer little detail in corroboration, and do not appear to be so unusual that they should excuse the defendant from following the rules of civil procedure.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and serve Defendant with a copy of the filed Order.

13. 9:00 AM CASE NUMBER: L25-11859
CASE NAME: BANK OF AMERICA N.A. VS. KENNETH JOHNSON
***HEARING ON MOTION IN RE: NTC AND MTC FURTHER RESPONSES TO DEMAND FOR**
PRODUCTION OF DOCUMENTS; REQ. FOR SANCTIONS

FILED BY: JOHNSON, KENNETH C

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion to Compel further discovery responses on 4/14/26 and properly provided notice to Plaintiff.

Plaintiff filed a Response on 6/30/26.

Defendant filed a Reply, on 7/6/26.

Background

Exhibit A of Defendant's Motion reflects that he made a demand for the production of documents on 1/5/26. Exhibit B shows that Plaintiff provided a verified response to this request. The verification is dated 2/13/26. Exhibit One of Plaintiff's Response reflects that Plaintiff served this verified response on Defendant by mail on 2/20/26.

Defendant's proof of service, filed 4/14/26, reflects that Defendant mailed notice of his Motion to the Plaintiff on 4/14/26.

Analysis

Section 2031.310(c) provides that a party waives the right to compel any further responses to a discovery demand if they fail to provide notice of a motion to compel "within 45 days of service of the verified responses."

In the instant matter, as Plaintiff points out in their Response, even allowing for the additional 5 days of notice for mail service, 45 days from 2/25/26 would have been 4/11/26, which is before Defendant's service of the Motion (both the actual date of mailing the Motion and the date that factors in the additional 5 days of notice for mail service fall after 4/11/26).

Defendant has waived his right to compel further responses.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and provide copy of filed Order to Defendant.